CNR No: PHHC010866332025
2026:PHHC:110237



**IN THE HIGH COURT OF PUNJAB AND HARYANA CHANDIGARH**

**134**

**CRM-M-30663-2025 (O&M)**
**Date of decision: 11.08.2026**

**SURENDER KUMAR @ BANTY**

**…Petitioner**

**V/S**

**STATE OF HARYANA AND OTHERS** **…Respondents**

**CORAM: HON'BLE MS. JUSTICE SHALINI SINGH NAGPAL**

Present: Mr. Ram Kumar Saini, Advocate
for the petitioner.

Mr. Vikas Bhardwaj, AAG Haryana.

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**SHALINI SINGH NAGPAL J.(ORAL)**

1. Petitioner seeks quashing/setting aside of order dated 07.07.2023 of learned Sub Divisional Judicial Magistrate, Mohindergarh in COMI No. 32/2025 titled ***Surender Kumar @ Bunty Vs. Pardeep Kumar and Others*** vide which his application for investigation and registration of FIR under Section 156(3) Cr.P.C. was declined. Order dated 09.01.2025 of learned Additional Sessions Judge, Narnaul, dismissing the revision petition against order dated 07.07.2023 has also been assailed.

2. Learned counsel for the petitioner submits that petitioner and his wife successfully contested elections of Municipal Committee, Mahendergarh. Petitioner's wife was elected President of the Committee. They had deposited election expenses registers, bills before the Municipal Committee, Mahendergarh. However, local political entities were opposed to

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2026.08.13 19:04
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election of petitioner and his wife and got various cases registered against them, which were either quashed or cancellation reports were filed. A No-Confidence Motion was also brought against petitioner and his wife, which was stayed by this Court. Petitioner and his wife were even suspended three times, for which too, they approached this Court and two suspension orders were stayed. FIR No. 164 dated 29.05.2023 under Sections 420, 467, 468, 471 and 120-B, Police Station City Mahendergarh was registered against the petitioner on the allegation of cheating by intentionally preparing fake postal receipt registers/diary under pre-planned conspiracy and for submitting the same before the State Election Commissioner, Haryana, Panchkula as genuine. Quashing petition against that FIR was pending. Petitioner then filed a complaint under Sections 381/204/420/120-B/166 Indian Penal Code before learned Sub Divisional Judicial Magistrate, Mahendergarh with a request for sending the complaint for registration of FIR under Section 156(3) Cr.P.C. but the complaint was dismissed holding that no case was made out for registration of FIR. The case was, however, adjourned for preliminary evidence. The revision petition against the order dated 07.07.2023 was also erroneously dismissed by learned Additional Sessions Judge, Narnaul.

3. Learned counsel further submits that the orders passed by learned Judicial Magistrate Ist Class, Mahendergarh and by Additional Sessions Judge, Narnaul were illegal, unjust and unsustainable in the eyes of law. No reasons were recorded by

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learned Sub Divisional Judicial Magistrate, Mahendergarh for rejecting the complaint and a non-speaking order was passed, though specific allegations were levelled in the complaint against respondents No. 2 to 4. The Revisional Court also erred in law in holding that there was no need for any police investigation, though, it was clear that respondents No. 2 to 4, in connivance with each other had mis-appropriated official record. It is prayed that orders dated 07.07.2023 and 09.01.2025 of learned Sub Divisional Judicial Magistrate, Mahendergarh and learned Additional Sessions Judge, Narnaul, respectively be set aside and direction be issued to the police to register First Information Report. Learned counsel relies upon ***Lalita Kumari Vs. Govt. of U.P. and others 2014(1) SCC(Cri) 524*** and ***Sakiri Vasu Vs. State of U.P. and Others 2008(1) RCR (Criminal) 392*** to submit that Magistrate had powers to order registration of FIR under Section 156(3) Cr.P.C. and registration of FIR was mandatory if the information disclosed cognizable offence.

4. Heard.

5. In the complaint under Sections 381/204/420/120-B/166 Indian Penal Code filed before learned Sub Divisional Judicial Magistrate, Mahendergarh, petitioner alleged that in the year 2018 he and his wife received notice from the Election Commission regarding non-deposit of details of expenses/register incurred during elections, whereas the same had been deposited in Municipal Committee on 10.06.2016. Reply was prepared giving

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the election expenses register/bills etc. No action was taken, but after two years, again notices were received from Election Commission on the same lines, upon which petitioner obtained copy of election expenses, register bills and postal receipt registers through RTI which had the signatures of Harish Kumar, Pardeep Kumar and Khillu Ram (impleaded as accused). All the accused were summoned for verification during inquiry at Panchkula, who made statement verifying copies. However, due to political reasons, the Election Commission disqualified the petitioner and his wife on 10.02.2021, against which a writ petition was filed in the High Court. Due to political pressure, the Election Commission passed order for registration of FIR, on complaint dated 03.03.2023 accused No. 1, to the Police Station, upon which FIR was registered against petitioner and his wife. Thus, accused in connivance with each other, under a pre-planned conspiracy, with intention to cause loss to the petitioner and his wife, stole the election expenses registers, bills etc. deposited by the petitioner and his wife and destroyed the same.

6. Section 156(3) Cr.P.C. reads thus:

> *"(i) Any officer-in-charge of a police station may, without the order of a Magistrate, investigate any cognisable case which a Court having jurisdiction over the local area within the limits of such station would have power to inquire into or try under the provisions of Chapter XIII.*

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*(ii) No proceeding of a police officer in any such case shall at any stage be called in question on the ground that the case was one which such officer was not empowered under this section to investigate.*

*(iii) Any Magistrate empowered under section 190 may order such an investigation as above mentioned."*

7. Resort to Section 156(3) Cr.P.C. is made when the police refuses to register a first information report. The complainant, thereafter, can invoke the jurisdiction of the Court for police investigation under Section 156(3) Cr.P.C. Whether or not, the order for registration of FIR and police investigation is to be made under Section 156(3) Cr.P.C. or the case is to be treated as a private complaint by calling upon the complainant to lead preliminary evidence, is entirely within the discretion of the concerned Magistrate. Whenever any application is filed by the complainant before the court of learned JMIC under Section 156(3) Cr.P.C, the duty of the concerned Magistrate is to apply his mind to adjudge whether the case is fit one to order police investigation.

In ***Om Prakash Ambadkar Vs. The State of Maharashtra (SC) 2025 SCC Online SC 238*** Hon'ble Supreme Court has ruled that a Magistrate should pass orders under Section 156(3) Cr.P.C. only if he is satisfied that the information reveals commission of a cognizable offence and also about the necessity of

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2026.08.13 19:04
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police investigation for digging out of evidence wherein neither is in possession of the complainant nor can be procured without the assistance of the police. It was also observed that it is not necessary that in every case, where a complaint has been filed under Section 200 Cr.P.C., the Magistrate should direct the police to investigate the crime. It was also observed that the Magistrate ought to direct investigation by the police only where the assistance of the Investigating Agency is necessary and the Court feels that the cause of justice is likely to suffer in the absence of investigation by the police.

8. Thus, law does not enjoin the Magistrate to mechanically direct investigation by the police, without examining whether investigation by the State machinery is actually necessitated in the facts and circumstances of each individual case. Usually, such orders are passed if the allegations made in the complaint require complex and complicated investigation which cannot be undertaken without active assistance and expertise of the State machinery. A judicious approach is required while considering an application seeking registration of FIR and investigation by the police under Section 156(3) Cr.P.C.

9. Even though impugned order of learned Judicial Magistrate Ist Class, Mohindergarh does not record detailed reasons for declining request of petitioner, it was not a case where police investigation was necessitated.

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10. Police investigation would be required only in a case of a nature where it is not possible for the private complaint to collect evidence and where complicated investigation is required. The powers under Section 156(3) Cr.P.C. directing registration of FIR and police investigation are required to be used sparingly, only to avoid miscarriage of justice. In every complaint, where such a prayer is made for police investigation and registration of FIR, it is not necessary for the Magistrate to direct registration of FIR.

11. As such, there is no error apparent on the face of the record to set aside orders dated 07.07.2023 and 09.01.2025 of learned Sub Divisional Judicial Magistrate, Mahendergarh and learned Additional Sessions Judge, Narnaul, respectively. The findings of learned Additional Sessions Judge, Narnaul that the case was based on documentary evidence which could easily be produced by the petitioner and investigation by the police was not required, is based on correct appreciation and does not smack of illegality or perversity requiring interference in the exercise of inherent powers by this Court.

12. The petition, being, bereft of any merit, is hereby dismissed.

13. Pending CRM(s), if any, also stands disposed of.

**(SHALINI SINGH NAGPAL)**
**JUDGE**

**11.08.2026**
*Ajay Goswami*

*Whether speaking/reasoned: Yes/No*
*Whether reportable: Yes/No*

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